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LINE 9

25-CIV-09351

ALEXANDER ROWLAND, ET AL. VS. ACE FUNDING SOURCE LLC

ALEXANDER ROWLAND
ACE FUNDING SOURCE LLC

STEVEN J. MIRSKY
BARUCH C. COHEN

MOTION TO BE RELIEVED AS COUNSEL FOR PLAINTIFFS ALEXANDER ROWLAND AND LERNALABS, INC.

TENTATIVE RULING:

The court rules on the motion of Steven J. Mirsky, Mirsky Corporate Advisors, APC to be relieved as counsel for plaintiffs Alexander Rowland, Lernalabs, Inc. as follows:

On the notice of motion filed April 13, 2026, plaintiff's counsel put the date of July 7, 2026 as the hearing date, but the clerk's office changed the hearing date to July 21, 2026. The court file shows two proofs of service: (1) filed April 13, 2026 showing proof of service on defense counsel on April 12, 2026 and (2) filed April 17, 2026 showing proof of service on plaintiffs on April 17, 2026. Thus, based upon the change of hearing date by the clerk, plaintiffs' counsel could not have provided proper notice of the July 21, 2026 hearing to defense counsel. It is unclear whether plaintiff was served with notice of the hearing date of July 7 or July 21, 2026. There is no amended proof of service on defense counsel of an amended notice with the court date. Therefore, it is unclear if plaintiffs and defense counsel received proper notice of the hearing date. (Cal. Rules of Court, rule 3.1110(b)(1).) Without proper notice on plaintiffs and defense counsel, the court cannot consider the motions. (See *Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [court lacks jurisdiction to rule on a motion that has not been properly noticed].)

Even if plaintiffs' counsel can show proof of service of proper service of the motion, the court has concerns regarding granting the motion because of the prejudice to plaintiffs. Based upon the stipulation of counsel, the court continued defendant's motion to enforce the mandatory forum selection clause and dismiss or stay for forum non conveniens until August 4, 2026. At that time, the court had no information regarding either motion. In reviewing this motion, the court notes: (1) the basis for the withdrawal is the non-payment of fees; (2) the complaint specifically alleges that venue is proper in this court because enforcement of the forum selection clause would be unreasonable and substantially diminish plaintiffs' unwaivable rights (complaint ¶¶ 12-26); thus plaintiffs' counsel had contemplated that defendant's motion could be brought, and to make the allegations in the complaint would have researched the issue and formulated the opposition to the motion; and (3) both plaintiffs, but especially Lernalabs, Inc. who is an entity and cannot appear pro per, would be prejudiced by having this potentially case dispositive motion heard two weeks after the motion to withdraw. Therefore, the court DENIES without prejudice the motion to withdraw.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiffs shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 10

25-CLJ-07223

WELLS FARGO BANK, NA VS KYLE A ROBERTSON

WELLS FARGO BANK, NA
KYLE A ROBERTSON

JON O. BLANDA

MOTION FOR SUMMARY JUDGMENT PURSUANT TO CCP 437C

TENTATIVE RULING:

The Motion for Summary Judgment (the “Motion”) brought by Plaintiff Wells Fargo Bank, N.A. is GRANTED.

Background

Plaintiff alleges that on or about May 31, 2024, it issued Defendant a loan under a written agreement. (Complaint, p.3, BC-1, & Exh. A; *see also* Gibbons Decl., ¶¶ 9-10, & Exh. 1.) However, as of about March 20, 2025, Defendant stopped making payments on the account (Complaint, p.3, BC-2; *see also* Gibbons Decl., ¶¶ 20-21), leaving an unpaid balance of \$15,457.51 (Complaint, p.3, BC-4; *see also* Gibbons Decl., ¶¶ 21-22). Plaintiff seeks damages including attorney’s fees according to proof (Complaint, p.3, BC-5), and costs of suit (*id.*, p.3, BC-6).

On October 30, 2025, Defendant in pro per filed a form Answer that admits all of the statements of the Complaint. (Answer, box 3.b.) Therein, Defendant sets forth as an affirmative defense the statement that: (1) when he lost his income he called Plaintiff to request that payments be paused until he were earning income again, and Plaintiff agreed; (2) he received a statement and learned that his account was sent to collections, so he called Plaintiff again and was told that the account was still with Plaintiff and on hold; (3) he received a Summons and called Plaintiff’s counsel about ten times, with no response; and that he called Plaintiff’s legal department to recount this series of events, and his interlocutor told him that the agents with whom he had spoken were not supposed to say what he says they did, and that she would alert counsel of record that Defendant was trying to reach him to resolve the situation; and (4) as of October 28, 2025, he had not received a response from Defendant’s counsel. However, according to Plaintiff’s Qualified Witness, Betsy L. Gibbons, there is no record of any unresolved dispute on Defendant’s account (Gibbons Decl., ¶ 19).

Through its Motion, Plaintiff seeks summary judgment of the Complaint, which states a single cause of action.

Legal Standards for Summary Judgment

The California Code of Civil Procedure provides that “[a] party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc., § 437c, subd. (a)(1).)
